

**PennDOT District 11-0 Right-of-Way Meeting for  
The Ohio River Trail Project - ECMS 95773**

Meeting Minutes  
Ohio River Trail (ORT), TCSP Phase 1  
Project Sponsor- Coraopolis Borough  
Revised 10.7.16, Written- October 3, 2016

Meeting Date- October 3, 2016 9 am- 10:30 am  
Location- District 11-0 Office  
Attendance- Attached  
Minutes submitted by Mackin Engineering Company, Robert Genter, Mackin Project #5152

*Comments submitted 10.04.16 by David Sobek, District 11-0, are in italics below.*

Purpose-

The Ohio River Trail (ORT) would like to request an easement for public trail use on the property of Duquesne Light Company (DLC), and on the property of Moon Township for the design and construction of a shared use trail.

The meeting included a review of the Local Project Sponsor (LPS) process and documents required by PennDOT for right-of-way (ROW) approval.

The ROW agreement is to be between the project sponsor- Coraopolis Borough (Borough), the ORT, and the land owners- Duquesne Light Company and Moon Township.

Project Background-

The ORT project is an improvement to the current PA Bicycle Route-A. The project will offer users a choice to travel along lower volume and lower speed roadways, and along a separated (off-road) trail.

The subject ROW discussion is for a 0.5-mile separated trail section extending from the on-road bike route in Coraopolis onto DLC property and Moon Township property. The subject ROW is all in the municipality of Moon Township.

The completed ORT project will connect the 46-mile Montour Trail System through the Borough and into Moon Township's riverfront park. This trail is part of a much larger trail system connecting over 400 miles of trail, from Washington DC to Pittsburgh, through Coraopolis, and west toward the state of Ohio.

The trail is proposed to be 10' wide, crushed limestone surface and include a parallel drainage ditch on the up-hill side. The trail would be designed for pedestrian and bicycle use, DLC and trail maintenance, and emergency vehicle use.

Meeting-

1. Introduction of project- Robert Slagel, PennDOT District 11-0
2. Project Overview- Robert Genter, Mackin Engineering Company
3. Recommendation of ROW procedures (LPS procedure)- Jaqueline Evans, PennDOT District 11-0
4. Project discussion included the following:
  - a. Review of the Plans-
    - i. Mackin to add stationing for the trail

- ii. Mackin to add ROW at Valley Ambulance Way
  - iii. Clarify ROW line at Station 71-73
  - iv. Clarify property owner Station 77-83; either Commonwealth of PA or legal ROW for SR0051
  - v. ROW plans to include easement language, claim block, trail design and impacts, and station limits of required easement.
5. The Borough and ORT are to conduct negotiations for easement with DLC and Moon following LPS procedures once the ROW plans are approved.
  6. The trail maintenance agreement is complete by Moon Township but must be completed by Coraopolis Borough.

#### Action-

1. A sample model trail easement agreement was given to R. Slagel. Jaqueline Evans to send approved easement example (if available) to Coraopolis and Mackin for use.
2. A copy of PennDOT Publication 740, Chapter #5 (ROW) was given to Raymond McCutcheon, Borough of Coraopolis.
3. J Evans to supply Borough with LPS procedure format and forms to complete during ROW negotiation process.
4. Mackin to complete ROW plan showing easement required, quantified area, line and grade, cut/fill, drainage and impacts.
5. Mackin and PennDOT to conduct **pre-review of ROW** plans prior to official submission
6. Ray McCutcheon to engage Borough solicitor and ORT for qualified person to present ROW to landowners- DLC and Moon.
7. Borough to submit qualification for negotiator to DOT.
8. J Evans to send sample resolution for easement acquisition to R McCutcheon
9. Coraopolis to pass resolution for acquisition.
10. Christopher Kefalos of DLC to check deed for any utility or access easements across property- existing utilities and driveways currently cross the property.
11. R Slagel said No HOP is necessary due to nature of this project review and approval process.
12. R McCutcheon to request extension of growing greener grant.

If you have meeting minute comments or edits, please forward them to Robert W. Genter at Mackin Engineering Company- [rwg@mackinengineering.com](mailto:rwg@mackinengineering.com). If comments or responses are not submitted within 10 days of this mailing, October 3, 2016, the minutes will stand and be filed as part of the project record.

*Comments submitted 10.04.16 by David Sobek-*

*Page 1, 4.a.ii. – Please clarify this sentence: “Mackin to add ROW at Valley Ambulance Way”.*

*Please add the following comments:*

- *This project has federal funding in the design process only. Funding for construction will come from non-PennDOT state entities like the Commonwealth Funding Agency. Because federal funds are being used, a Right-of-Way Plan will be needed and the Local Project Sponsor process will have to be followed. The Right-of-Way Plan is needed to show the easements.*
- *One file folder will need to be kept for each entity involved in the negotiation process. These folders are to contain the documentation of all that is done, including phone conversations.*
- *Bob Slagel will check to see if any Right-of-Way funds are specified in the Reimbursement Agreement.*

- *The first thing that needs to be done is that Mackin needs to submit a Line, Grade, and Typical Section Submission to the District for review and approval. This submission needs to address how the trail will tie-in to SR 51.*
- *The second priority is having an “over-the-shoulder” review of a draft Right-of-Way Plan with the District Right-of-Way Administrator. Then comments from this meeting need to be incorporated into the Final Right-of-Way Plan.*
- *Only the last five sheets of the Construction Plan need to be included in the Right-of-Way Plan.*
- *Environmental Clearance needs to be obtained before the negotiation process can begin.*
- *Temporary Construction Easements may be needed during the construction of the project.*
- *Drainage cross pipes need to be included in easements.*

Regards,

A handwritten signature in blue ink, appearing to read "RW Genter".

**MACKIN ENGINEERING COMPANY**

Robert W. Genter, RLA, ASLA

Director- Land Development Services

rwg@mackinengineering.com